

13. 9:00 AM CASE NUMBER: C25-01863
CASE NAME: DARON OLIVER VS. SELINA CHEUNG
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: FEN GUAN, HUAN

TENTATIVE RULING:

This hearing is vacated by stipulation of counsel. No appearance is required at the hearing on July 8, 2026.

14. 9:00 AM CASE NUMBER: C25-01863
CASE NAME: DARON OLIVER VS. SELINA CHEUNG
HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT
FILED BY: FEN GUAN, HUAN

TENTATIVE RULING:

This hearing is vacated by stipulation of counsel. No appearance is required at the hearing on July 8, 2026.

15. 9:00 AM CASE NUMBER: C25-03683
CASE NAME: TEMI STEWART VS. GREYSTAR REAL ESTATE PARTNERS, LLC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: GREYSTAR REAL ESTATE PARTNERS, LLC

TENTATIVE RULING:

This hearing is **vacated**. Plaintiff filed a First Amended Complaint on June 24, 2026. No appearance is required at the hearing on July 8, 2026.

16. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL
FILED BY: BEMAN, STEVE

TENTATIVE RULING:

Summary

Curtis Hoke, who is Counsel for Plaintiff Steve Beman, filed a Motion to be Relieved as Counsel on January 9, 2026. The Motion is **granted** as set forth herein.

Background

The California Paraquat lawsuits allege that Defendants Syngenta and Chevron Phillips Chemical Company knew or should have known that chronic exposure to Paraquat, a toxic herbicide used in agriculture, significantly increases the risk of developing Parkinson's disease, yet failed to adequately warn users, regulators, or the public.

On January 9, 2026, Curtis Hoke, ("Withdrawing Counsel") who is Counsel for one of the Plaintiffs,

Steve Beman, filed a Motion to be Relieved as Counsel. Withdrawing Counsel supports his motion with a declaration claiming that Plaintiff and counsel have irreconcilable differences, and continuing representation is not feasible under these circumstances. Plaintiff did not consent to his withdrawal.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination “upon the consent of both client and attorney,” or “upon order of the court, upon the application of either client or attorney, after notice from one to the other.” Defendant’s Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. The Court acknowledges that the prejudice to Defendants is minimal, as there is ample time for Defendants to retain new trial counsel before the Case Management Conference set for November 19, 2026 at 8:30 a.m.

Ruling

After reviewing the papers submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The Court makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney’s Motion to be Relieved as Counsel (Judicial Council Form MC-053) as lodged on January 9, 2026. The withdrawal is effective immediately.
3. Withdrawing Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill out and file the change of address form with the Court.
4. The Court confirms the further case management conference on November 19, 2026 at 8:30 a.m. Withdrawing Counsel is ordered to provide notice to Plaintiff of this CMC, and to inform Defendants that they are ordered to appear remotely via Zoom.
5. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court’s Order (MC-053) and the Change of Address form (MC-040).

17. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: NIST, WILLIAM G
TENTATIVE RULING:

Summary

On April 1, 2026, Plaintiffs and Cross-Defendants William Nist and Mari Nist (herein referred to as "Cross-Defendants") filed a demurrer to the First Amended Cross-Complaint (herein referred to as "FAXC") filed by Defendant Cross-Complainant Shanna Farrell ("Farrell"). The Demurrer challenges the FAXC causes of action for: (1) Negligence and (2) Negligence (Tort of Another).

Farrell did not timely oppose this demurrer. Therefore, Cross-Defendants demurrer to FAXC filed by Farrell is **sustained without leave to amend.**

Analyses

Cross-Defendant's Demurrer to the FAXC filed by Farrell was filed on April 1, 2026. The hearing was originally calendared for September 23, 2026. On June 5, 2026, the Court granted an order shortening time for the hearing of this Demurrer, setting the hearing for July 8, 2026.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine (9) court days before the hearing is June 24, 2026. Farrell did not file a timely opposition. On June 25, 2026, Cross-Defendants' counsel filed a "reply" brief noting that Shanna Farrell did not file and serve a timely opposition to the demurrer.

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See

<https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Ruling

1. The Court **sustains** the Demurrer to the FAXC without leave to amend.
2. The Court will execute the proposed order lodged on April 1, 2026, and will direct the clerk of the court to attach a copy of this tentative ruling.